

## 25STCV36007 25STCV36007

County: los-angeles

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NATURE OF PROCEEDINGS: Hearing on Petition to Confirm

Minor's Compromise.

The Amended Petition for Approval of Compromise of Minor's Claim is granted.

### BACKGROUND

Plaintiffs Ricardo M. Cardenas (Ricardo), Alondra Gonzalez (Petitioner), and Vincent V. Cardenas (Claimant), a minor, by and through his guardian ad litem Alondra Gonzalez, filed this action against Jonathan Ceja (Ceja) and Jessica Mejia Romero (Romero), alleging that Ceja ran a red light and struck the vehicle in which the three Plaintiffs were traveling.

The causes of action are: (1) Motor Vehicle; and (2) General Negligence.

Petitioner filed an Amended Petition for Approval of Compromise of Minor's Claim and lodged a proposed amended order.

On August 21, 2026, the Court continued the hearing on the original petition so that Petitioner could file an amended petition. The Court identified defects in the injury documentation, in the settlement terms, and in the proposed delivery of the balance to a guardian ad litem.

### LEGAL STANDARD

A minor may compromise a claim only with the approval of the court in

which the action is pending. (Code Civ. Proc., § 372, subd. (a).) “Therefore, without trial court approval of the proposed compromise of the ward’s claim, the settlement cannot be valid.” (Scruton v. Korean Air Lines Co. (1995) 39 Cal.App.4th 1596, 1606.) In deciding whether to approve, the Court exercises “the protective role the court generally assumes in cases involving minors, a role to assure that whatever is done is in the minor’s best interests.” (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.) “The court functions similarly in approving a minor’s compromise where its primary concern is whether the compromise is sufficient to provide for the minor’s injuries, care and treatment.” (Ibid.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.951, and 7.952. (Cal. Rules of Court, rule 3.1384(a).) The petition must be made on Judicial Council form MC-350, must be verified, and must contain “a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition.” (Cal. Rules of Court, rule 7.950.) Where an attorney has represented or assisted the petitioner, the petition must disclose whether that attorney has received attorney fees or other compensation in connection with the claim, and, if so, in what amounts and from whom. (Cal. Rules of Court, rule 7.951.) A petition requesting approval of an attorney fee “must include a declaration from the attorney that addresses the factors listed in (b).” (Cal. Rules of Court, rule 7.955(c).) The petitioner and the claimant must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952(a).)

Where the court approves a compromise of a minor’s disputed claim that provides for the payment of money for the minor’s benefit, the court “shall make a further order authorizing and directing that reasonable expenses, medical or otherwise and including reimbursement to a parent, guardian, or conservator, costs, and attorney’s fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or person with a disability.” (Prob. Code, § 3601, subd. (a); see id., § 3600.)

Where no guardianship of the estate of the minor exists, “the remaining balance of the money and other property (after payment of all expenses, costs, and fees as approved and allowed by the court under Section 3601) shall be

paid, delivered, deposited, or invested as provided in this article.” (Prob. Code, § 3610.) The court “shall, upon application of counsel for the minor ..., order any one or more of” the dispositions Probate Code section 3611 lists. (Prob. Code, § 3611.)

## ANALYSIS

Petitioner asks the Court to approve a compromise of Claimant’s claim for \$8,470.00. From those proceeds Petitioner asks that \$3,010.00 in medical expenses, \$2,117.50 in attorney fees, and \$161.92 in costs be paid, and that the \$3,180.58 balance be delivered to her as Claimant’s parent. (Am. Pet., items 10a, 13a, 13b, 16, 18b(5).) Those figures reconcile, and the Petition, counsel’s declaration, and the proposed order state each of them identically. (Am. Pet., item 16; Reyes Decl., ¶ 6; Proposed Order, items 8a(5), 8b.)

### I. Injury Documentation

Item 8 directs that a doctor’s report containing a diagnosis of the claimant’s injuries or a prognosis for recovery, together with a report of the claimant’s current condition, be attached as Attachment 8. The Court continued the original petition in part because Attachment 8 then consisted of a one-page billing statement and supplied none of the required documents. (Minute Order, Aug. 21, 2026.)

Attachment 8 now carries the emergency department record. The attending physician examined Claimant, ordered cervical, thoracic, and lumbar radiographs, and read each as showing no fracture or dislocation. Likewise, a radiologist read each film as negative for acute pathology. The diagnosis was acute cervical, thoracic, and lumbar sprains, and the discharge plan was Tylenol and follow-up with a primary physician in 2 days. (Am. Pet., Attachment 8.)

Item 8 also calls for a report of the claimant’s current condition. Petitioner declares under penalty of perjury that Claimant received no further treatment, has recovered completely from the injuries described in item 6, and has no permanent injuries. (Am. Pet., items 7, 8a.) Accordingly, the Court concludes that the requirement is met.

### II. Settlement Terms

Item 10b names Ceja and Romero as the defendants who have offered to pay. Item 10c states that Allstate Insurance will fund a single payment of \$8,470.00 on their behalf, subject to court approval and a release of those two defendants. (Am. Pet., items 10b, 10c.) The proposed order names the same two defendants as the payer. (Proposed Order, item 4.)

Item 11b(6) calls for the reasons for the apportionment of the settlement payments between the claimant and each other plaintiff. Attachment 11b(6) to the amended petition gives them. Petitioner's post-reduction medical expenses are \$13,250.00 and Ricardo's are \$5,217.30, against Claimant's \$3,010.00. Both adults report continuing spinal and orthopedic symptoms, further treatment, pain-management needs, and vocational consequences, and Petitioner reports that her injuries ended her catering business. Notably, Claimant had one emergency visit, no further care, and no claimed wage loss. (Am. Pet., Attachment 11b(6).)

Petitioner is Claimant's parent and guardian ad litem and is also a plaintiff drawing \$50,000.00 from the same exhausted policy limit. (Am. Pet., items 1, 11b(3), 11b(5).) She discloses that her own financial interest differs from Claimant's because both draw on one limited fund, and she asks the Court to determine independently whether the division protects him. (Am. Pet., Attachment 11b(3).)

Claimant's \$8,470.00 is 8.47% of the fund. The two adults claim continuing injury, further treatment, and lost earning capacity, while Claimant's claim ended with a sprain diagnosis on negative imaging and no further care. That difference accounts for the division. Claimant's gross recovery exceeds his medical expenses by \$5,460.00, and \$3,180.58 remains for him after fees and costs. The Court finds the apportionment fair to Claimant.

### III. Delivery of Proceeds

Item 18b(5) asks that \$3,180.58 be paid or delivered to a parent of the minor, without bond, on the terms and under the conditions specified in Probate Code sections 3401 and 3402. (Am. Pet., item 18b(5).) Probate Code section 3611, subdivision (e), permits that disposition where the remaining balance does not exceed \$5,000 in value. However, section 3401, subdivision (c), permits it only where the minor's total estate, including the money to be delivered, does not exceed \$5,000 in value. That subdivision also requires the parent to give the person making the delivery "written assurance, verified by

the oath of such parent,” to that effect.

Here, Petitioner declares that no guardianship of Claimant's estate exists, that his total estate including the \$3,180.58 does not exceed \$5,000 in value, and that she gives that assurance under oath to Allstate Insurance and to any other person making the payment. She declares as well that she will hold the funds in trust for Claimant until he reaches majority and will give the payer a written receipt. (Gonzalez Decl., ¶¶ 2-6; see Prob. Code, § 3402.) The proposed order conditions delivery on that assurance. (Proposed Order, item 8b(2).) Thus, Probate Code section 3611 authorizes the disposition Petitioner requests, and Petitioner has met the conditions section 3401 attaches to it.

#### IV. Attorney Fees

Item 17c states that counsel has received attorney fees or other compensation in addition to the fee requested here, and refers to Attachment 17e. (Am. Pet., item 17c.) Rule 7.951 requires the Petition to disclose those fees together with the amounts paid and the dates of payment.

Attachment 17e gives two sets of amounts. The attachment states that “[t]he separate attorney fees attributable to the adult settlements are one-third of each adult’s gross recovery ...,” and tabulates \$16,666.67 from Petitioner’s \$50,000.00 recovery and \$13,843.33 from Ricardo’s \$41,530.00 recovery. The same attachment then reports that the fee paid by Petitioner was \$20,000.00 and the fee paid by Ricardo was \$16,612.00, each on August 6, 2026. (Am. Pet., Attachment 17e.) Those two payments are 40% of each adult recovery and exceed the tabulated one-third figures by \$6,102.00, and the retainer agreement sets the contingency fee at 40% of any amount recovered after the lawsuit was filed. (Am. Pet., Attachment 17a, ¶ 6.)

Rule 7.951 calls for the amounts paid, and Attachment 17e reports those amounts as paid on a stated date. The Court takes the reported payments of \$20,000.00 and \$16,612.00 as what counsel received and treats the one-third tabulation as an error in the attachment. The discrepancy does not bear on the compromise before the Court. Counsel’s fee from the adult recoveries comes out of the adults’ shares, and Claimant’s \$8,470.00 and his 25% fee are fixed whichever rate the adults paid. Claimant’s rate is below both figures the attachment gives, so the fee charged against his recovery is proportionally smaller than the fee charged against theirs.

Item 13a calls for a declaration from the attorney explaining the basis for the fee request, including a discussion of the applicable factors listed in rule 7.955(b), and rule 7.955(c) requires the same. Counsel declares that his firm performed “case investigation, review of medical records, communications with opposing parties, settlement negotiations, and preparation of settlement documents.” (Reyes Decl., ¶ 3.) He declares that the matter resolved for \$8,470.00, that the requested fee is 25% of that sum, and that the fee and costs “are reasonable in light of the work performed, the result obtained, and the contingent nature of the representation.” (Reyes Decl., ¶¶ 4-5, 7.)

Rule 7.955(a)(1) directs the Court to apply a reasonable fee standard, and rule 7.955(a)(2) directs it to consider the terms of any representation agreement. Counsel limited his fee to 25% of Claimant’s gross recovery and waived the 40% the retainer agreement allows on a recovery obtained after suit was filed. (Reyes Decl., ¶ 2; Am. Pet., Attachment 17a, ¶¶ 6, 22.) The record shows the amount involved and the result obtained, a contingent fee carrying the risk of no recovery, costs the firm advanced, and a claim resolved without deposition or motion practice. On those factors the Court finds \$2,117.50 reasonable.

Accordingly, the Court approves the compromise, allows \$3,010.00 in medical expenses, \$2,117.50 in attorney fees, and \$161.92 in costs from the proceeds, and directs that the \$3,180.58 balance be delivered to Petitioner without bond on the conditions Probate Code sections 3401 and 3402 state.

## CONCLUSION

The Amended Petition for Approval of Compromise of Minor’s Claim is granted.